

<https://www.law.cornell.edu/cfr/text/26/1.351-3>

§ 1.351-3 [Records to be kept](#) and [information to be filed](#).

(a) Significant transferor. Every significant transferor must include a [statement](#) entitled, “STATEMENT PURSUANT TO [§ 1.351-3\(a\)](#) BY [INSERT [NAME](#) AND [TAXPAYER IDENTIFICATION](#) NUMBER (IF ANY) OF TAXPAYER], A SIGNIFICANT TRANSFEROR,” on or with such transferor's [income](#) tax return for the [taxable year](#) of the section 351 [exchange](#). If a significant transferor is a [controlled foreign corporation](#) (within the meaning of section 957), each [United States shareholder](#) (within the meaning of section 951(b)) with respect thereto must include this [statement](#) on or with its return. The [statement](#) must include—

- (1) The [name](#) and [employer identification number](#) (if any) of the [transferee corporation](#);
- (2) The date(s) of the transfer(s) of assets;
- (3) The [fair market value](#) and [basis](#) of the [property transferred](#) by such transferor in the [exchange](#), determined immediately before the [transfer](#) and aggregated as follows:
 - (i) Importation [property transferred](#) in a [loss](#) importation [transaction](#), as defined in [§ 1.362-3\(c\)\(2\) and \(3\)](#), respectively;
 - (ii) [Loss](#) duplication [property](#) as defined in [§ 1.362-4\(g\)\(1\)](#);
 - (iii) [Property](#) with respect to which any [gain or loss](#) was recognized on the [transfer](#) (without regard to whether such [property](#) is also identified in paragraph (a)(3)(i) or [\(ii\)](#) of this section); and
 - (iv) [Property](#) not described in paragraph (a)(3)(i), [\(ii\)](#), or [\(iii\)](#) of this section.
- (4) The date and [control](#) number of any private letter ruling(s) [issued](#) by the Internal Revenue Service in connection with the section 351 [exchange](#).